

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Team # 1	CCRB Case #: 201400796	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/17/2014 7:29 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/17/2015	Precinct: 49		
Date/Time CV Reported Wed, 01/22/2014 5:12 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 01/22/2014 5:12 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alban Kalaj	12720	950656	049 PCT
2. POM Edwin Crespo	07868	940032	049 PCT
3. SGT Kreshnik Bakraqi	03449	938016	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alban Kalaj	Force: PO Alban Kalaj pointed his gun at § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Alban Kalaj	Abuse: PO Alban Kalaj threatened to damage § 87(2)(b)'s property.	B . Unsubstantiated
C . SGT Kreshnik Bakraqi	Abuse: SGT Kreshnik Bakraqi entered § 87(2)(b) in the Bronx.	C . Substantiated
D . POM Edwin Crespo	Abuse: PO Edwin Crespo entered § 87(2)(b) in the Bronx.	D . Substantiated
E . POM Edwin Crespo	Discourtesy: PO Edwin Crespo spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . SGT Kreshnik Bakraqi	Discourtesy: SGT Kreshnik Bakraqi spoke discourteously to § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated
G . SGT Kreshnik Bakraqi	Abuse: SGT Kreshnik Bakraqi threatened § 87(2)(b) with the use of force.	G . Exonerated
H . SGT Kreshnik Bakraqi	Abuse: SGT Kreshnik Bakraqi threatened § 87(2)(b) and individuals with the use of force.	H . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint over the CCRB's Call Processing System on January 22, 2014 on behalf of herself, § 87(2)(b) and § 87(2)(b) (encl. C1-3).

On January 17, 2014, at approximately 7:29 p.m., PO Alban Kalaj, PO Edwin Crespo, and SGT Kreshnik Bakraqi, all from the 49th Precinct, arrested § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in the Bronx. As a result of the incident, the following allegations arose:

Allegation A—Force: PO Alban Kalaj pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is thus recommended that **Allegation A** be **unsubstantiated**.

Allegation B—Abuse of Authority: PO Alban Kalaj threatened to damage § 87(2)(b)'s property.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **unsubstantiated**.

Allegation C—Abuse of Authority: SGT Kreshnik Bakraqi entered § 87(2)(b) in the Bronx.

Allegation D—Abuse of Authority: PO Edwin Crespo entered § 87(2)(b) in the Bronx.

§ 87(2)(g)

It is therefore recommended that **Allegations C** and **D** be **substantiated**.

Allegation E—Discourtesy: PO Edwin Crespo spoke discourteously to § 87(2)(b)

Allegation F—Discourtesy: SGT Kreshnik Bakraqi spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations E** and **F** be **unsubstantiated**.

Allegation G—Abuse of Authority: SGT Kreshnik Bakraqi threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **exonerated**.

Allegation H—Abuse of Authority: SGT Kreshnik Bakraqi threatened § 87(2)(b) and individuals with the use of force.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be **unsubstantiated**.

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- See enclosures for pedigree information (encl. C4)

CCRB Statement:

§ 87(2)(b) was interviewed at the CCRB on March 24, 2014 (encl. C4-8).

On January 17, 2014, at approximately 7:29 p.m., § 87(2)(b) and his friend, § 87(2)(b) took § 87(2)(b)'s dog for a walk. § 87(2)(b)'s dog is a blue nose pit bull named § 87(2)(b). § 87(2)(b)'s apartment is on the § 87(2)(b) floor at the rear right of the NYCHA building. There are seven other apartments on the first floor. The walk lasted approximately 20 minutes and they walked back to § 87(2)(b)'s building, § 87(2)(b) in the Bronx. They did not walk with anyone else and they did not meet anyone on their walk. As they were walking they noticed a marked patrol vehicle driving by with SGT Bakraqi, PO Kalaj, and PO Crespo inside (see enclosure for descriptions (encl. C6). The vehicle was behind § 87(2)(b) and § 87(2)(b) when they arrived at the building and § 87(2)(b) assumed that they continued driving. § 87(2)(b) and § 87(2)(b) entered § 87(2)(b). A female and her husband, who both lived on the § 87(2)(b) floor, were standing in the lobby when § 87(2)(b) and § 87(2)(b) entered. § 87(2)(b) a friend of § 87(2)(b)'s who lives in the first apartment on the § 87(2)(b) floor (he did not know the apartment number), was in the lobby as well. There was no one else in the lobby at the time. The door closed behind § 87(2)(b) and § 87(2)(b) and they continued to walk to § 87(2)(b)'s apartment, which is located at the right rear of the building.

When § 87(2)(b) reached the hallway to his apartment, he noticed that the officers were attempting to get into the building. The female who lived on the first floor opened the door for PO Kalaj. § 87(2)(b) is "aggressive towards cops" and the dog began to growl at the officer. The dog also began to pull on its leash toward PO Kalaj and § 87(2)(b) pulled the dog down the hallway toward his apartment. PO Kalaj said, "Stop," and "come here" and § 87(2)(b) explained to the officer that he could not hold the dog like that. PO Kalaj unholstered his handgun and pointed it at § 87(2)(b)'s and § 87(2)(b)'s chest. § 87(2)(b) said, "Relax, don't shoot" to PO Kalaj. § 87(2)(b) knocked on his door to have his family open the door. His aunt, § 87(2)(b) opened the door. § 87(2)(b) entered with § 87(2)(b) and § 87(2)(b). As he entered he saw SGT Bakraqi and PO Crespo behind PO Kalaj. SGT Bakraqi told PO Kalaj to put his gun down. When he entered the apartment, § 87(2)(b) left the door open to the apartment. He entered his apartment in order to lock his dog in his bedroom, which is located in the rear of the apartment. Inside his apartment was his stepfather, § 87(2)(b) (whose last name he did not know); § 87(2)(b) his cousin, § 87(2)(b) and his mother, § 87(2)(b). § 87(2)(b) and § 87(2)(b) walked immediately to his bedroom and locked § 87(2)(b) inside. It took him approximately four minutes to get § 87(2)(b) in the room as she continued to pull toward the door of the apartment. Once § 87(2)(b) was secured in the room she calmed down. § 87(2)(b) also assisted holding the dog back.

When he turned to go back outside of the apartment PO Crespo and SGT Bakraqi had already begun to enter the apartment. § 87(2)(b) was at the door of the apartment. SGT Bakraqi pushed § 87(2)(b) out of the way of the door. SGT Bakraqi had a Taser drawn when he entered the apartment. Both officers were yelling at the two men to exit the apartment. PO Crespo called § 87(2)(b) a "bitch" for running. § 87(2)(b) stood in front of § 87(2)(b) and § 87(2)(b) blocking them from SGT Bakraqi and PO Crespo. § 87(2)(b) told the officers that the boys

were going to go outside and to wait until the dog was secured. PO Crespo pushed § 87(2)(b) out of the way. § 87(2)(b) was standing next to § 87(2)(b) and § 87(2)(b). When SGT Bakraqi and PO Crespo moved § 87(2)(b) pushed § 87(2)(b) and § 87(2)(b) into her room which is directly next door to § 87(2)(b)'s room. SGT Bakraqi pointed the Taser at § 87(2)(b)'s face and pushed her with his forearm backward. § 87(2)(b) attempted to put himself between SGT Bakraqi and § 87(2)(b) and he told the officers to relax. SGT Bakraqi told § 87(2)(b) that he wanted to talk to him in the hallway. The officers did not enter into any bedroom and did not do anything in the apartment besides what was mentioned in the above.

§ 87(2)(b) and § 87(2)(b) exited the apartment with PO Crespo and SGT Bakraqi. PO Kalaj had not entered the apartment and he stood at the doorway during the incident. § 87(2)(b) and § 87(2)(b) were handcuffed in the hallway and were transported to the 49th Precinct stationhouse. § 87(2)(b) was charged with "letting go of his dog" and "picking up his hands."

Victim: § 87(2)(b)

- See enclosures for pedigree information (encl. C9))

CCRB Statement:

§ 87(2)(b) was interviewed at the CCRB on March 24, 2014 (encl. C9-13). § 87(2)(g)

After two minutes of sitting inside the lobby, § 87(2)(b) observed the marked patrol vehicle pull up to the front of the building. The front door of the building was closed when § 87(2)(b) observed the officers. § 87(2)(b) said to § 87(2)(b) that they should go as he did not want any trouble with the officers. § 87(2)(b) and § 87(2)(b) stood up and walked inside of the building. The female (who lived on the § 87(2)(b) floor) remained next to the front door of the building. As the officers approached the building, § 87(2)(b) told the female that if the officers did not have a key to the building, that she was not obligated to open the door for them. He explained to the female that he and § 87(2)(b) did not have any identification and that they were going to go back to § 87(2)(b)'s apartment. § 87(2)(b) and § 87(2)(b) walked away. The female opened the door of the building and PO Kalaj, entered first followed by PO Crespo, and SGT Bakraqi. § 87(2)(b) and § 87(2)(b) continued walking to § 87(2)(b)'s apartment. PO Kalaj walked directly toward § 87(2)(b) and § 87(2)(b) while PO Crespo and SGT Bakraqi spoke with the female and male who were standing at the entryway of the building. § 87(2)(b) and § 87(2)(b) were standing directly next to each other while § 87(2)(b) was knocking on the door.

§ 87(2)(b) began knocking on his apartment door. He knocked numerous times. § 87(2)(b) believed that § 87(2)(b) became agitated because § 87(2)(b) never knocks more than once on the apartment door to be let in. § 87(2)(b) knocked for several minutes. § 87(2)(b) began to growl and bark at PO Kalaj. At first PO Kalaj and the other officers did not say anything to § 87(2)(b) and § 87(2)(b). When PO Kalaj got nearer to § 87(2)(b) and § 87(2)(b) he said, "Wait right there." As PO Kalaj said that he removed his firearm and held it above his head. He pointed the firearm at § 87(2)(b) and § 87(2)(b). § 87(2)(b) said to PO Kalaj, "What are you doing?" PO Kalaj reached out and grabbed § 87(2)(b)'s arm with his left hand while he pointed the firearm at him with his right hand. § 87(2)(b) pulled his arm out of the officer's grasp and said, "Hey listen, don't touch me. You don't know who I am and what I am capable of doing. Don't touch me, 'cause I don't want to lose control. Don't touch me. I am going back in the house right now, you don't have to do anything. You got to watch the news, this is how a lot of people are getting shot right now." PO Kalaj did not respond to § 87(2)(b).

§ 87(2)(b)'s mother, opened the door for § 87(2)(b) and § 87(2)(b). They immediately entered the apartment and brought the dog to § 87(2)(b)'s bedroom and lodged the dog inside. PO Kalaj said, "You have to come out." PO Crespo and SGT Bakraqi came to the front door at this time. PO Crespo placed his foot in the door between the hinges and the door and he put his flashlight into the same area of the door higher up. PO Crespo and SGT Bakraqi stated that they were going to get their lieutenant to enter the apartment. § 87(2)(b) responded, "Alright, go get your lieutenant then. We're not going anywhere." SGT Bakraqi entered the apartment and walked toward § 87(2)(b). § 87(2)(b) said to PO Crespo, "Hey officer, come and get your sergeant." PO Crespo said, "Don't touch the sergeant." At one point during the interaction, PO Crespo entered the apartment and stood near SGT Bakraqi. PO Kalaj never entered the apartment, but stood next to the door. § 87(2)(b) assumed that PO Crespo took his statement as a threat to the sergeant. SGT Bakraqi removed his Taser. At this point, § 87(2)(b) and § 87(2)(b) were near the back of the apartment in § 87(2)(b)'s mother's room. § 87(2)(b) said to SGT Bakraqi, "Listen, why the fuck you in the crib." SGT Bakraqi responded, "Get the fuck out of the apartment." SGT Bakraqi pointed the Taser around the house where the other occupants were. When § 87(2)(b) saw this, he told § 87(2)(b) that they should leave into the hallways so that the situation does not escalate further.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *old, female, Hispanic.*

Telephone Statement

§ 87(2)(b) provided a statement over the Call Processing System when she filed the complaint on January 22, 2014 (the message only contained the contact information for herself and the victims), and she provided follow-up details over the telephone on January 28, 2014 (encl. C1-3). § 87(2)(g) Upon § 87(2)(b)'s and § 87(2)(b)'s entry into the apartment, § 87(2)(b) asked what was wrong and SGT Bakraqi responded that § 87(2)(b) and § 87(2)(b) needed to exit the apartment immediately or the officers were going to enter the apartment. PO Crespo put his flashlight in between the door and the wall to keep the door from closing. SGT Bakraqi and PO Crespo entered the apartment and SGT Bakraqi pointed a Taser around the room. SGT Bakraqi said to § 87(2)(b) "Bitch, I want you outside." SGT Bakraqi grabbed § 87(2)(b)'s arm and said, "I don't give a fuck. I want them outside now." Both individuals were arrested.

Attempts to Contact Civilians

The CCRB exhausted all contact attempts to § 87(2)(b) and could not locate sufficient information to establish contact with § 87(2)(b) and § 87(2)(b) (encl. C14).

NYPD Statements:

Subject Officer: PO ALBAN KALAJ

- See enclosure for pedigree information (encl. D18).

Memo Book Complaint Reports, Arrest Reports and Summonses

§ 87(2)(b) had an unleashed pitbull. § 87(2)(b) and § 87(2)(b) refused several orders to stop and produce identification. § 87(2)(b) used the dog to intimidate the officer and made threatening motions with the dog. § 87(2)(a) 160.50

CCRB Statement

PO Kalaj was interviewed at the CCRB on June 18, 2014 (encl. D18-20).

On January 17, 2014, at approximately 7:29 p.m., PO Kalaj was performing a vertical patrol of NYCHA buildings at § 87(2)(b) in the Bronx. While in the police vehicle, PO Kalaj noticed a large group of individuals standing in the entryway to the building blocking the entrance. PO Kalaj could not recall how many individuals were blocking the entrance. He, PO Crespo, and SGT Bakraqi approached the entryway. PO Kalaj intended to speak with the individuals to determine whether or not they lived in the building. The entry door to the building was ajar. PO Kalaj observed these individuals through the open door. As PO Kalaj, SGT Bakraqi, and PO Crespo approached, either § 87(2)(b) or § 87(2)(b) (he could not recall which, but he stated that he knew it was one of them) closed the front door and ran toward apartment § 87(2)(b). Apartment § 87(2)(b) is located to the right of the entryway door and down a hallway. PO Kalaj did not see § 87(2)(b) and § 87(2)(b) with a dog at this point. PO Kalaj could not recall if anyone said anything to the individuals before they closed the door and he did not recall if any of the individuals said anything to him before they closed the door. PO Kalaj did not converse with the other officers regarding the observation.

One of the people standing in the entryway to the building let the officers inside. PO Kalaj immediately walked toward the direction that § 87(2)(b) and § 87(2)(b) walked. He thought at the time that SGT Bakraqi and PO Crespo followed him, but he discovered that they had not. Upon turning the corner to the hallway that leads to apartment § 87(2)(b), PO Kalaj saw § 87(2)(b) holding a pit bull. This was the first moment that PO Kalaj observed the pit bull. The pit bull was on a leash. § 87(2)(b) held the pit bull by the leash and the collar. The pit bull was barking and snarling toward PO Kalaj. PO Kalaj believed the dog was going to attack him. The pit bull was “a few feet” away from PO Kalaj. § 87(2)(b) was banging on the door to apartment § 87(2)(b). PO Kalaj noticed at this point that SGT Bakraqi and PO Crespo were speaking to the individuals in the lobby and that they had not followed him down the hallway. He could not hear their conversation. PO Kalaj feared for his safety because the pit bull barked and snarled at him and § 87(2)(b) was holding the dog in such a way that he could release the dog toward PO Kalaj. The pit bull was a few feet away from him. PO Kalaj drew his firearm and pointed it at the dog. He did not point his firearm at § 87(2)(b) and § 87(2)(b). He told § 87(2)(b) “If you let that dog go, I’ll have no choice but to have to shoot the dog.” PO Kalaj could not recall if § 87(2)(b) and § 87(2)(b) were saying anything. § 87(2)(b) pulled the dog behind himself, at which point PO Kalaj holstered his firearm. PO Kalaj gestured toward § 87(2)(b) to have § 87(2)(b) step toward him. He said to § 87(2)(b) “Come here I want to talk to you” and made a motion so that § 87(2)(b) would step away from the dog. § 87(2)(b) hit PO Kalaj’s hand with his open palm and he stated, “If you touch me I’m going to fuck you up” and put his fists up in a fighting stance. This was when he was in violation of menacing an officer. At that moment, the door to apartment § 87(2)(b) opened and § 87(2)(b) and the dog entered the apartment. PO Kalaj did not see who opened the door for § 87(2)(b) and § 87(2)(b).

At about the same time, PO Crespo and SGT Bakraqi approached PO Kalaj. The door was closed by the time that they arrived. PO Kalaj informed SGT Bakraqi about what had occurred. None of the officers gave any commands through the door. PO Kalaj did not recall who closed the door to the apartment. PO Kalaj knocked on the door. He did not recall how many times. An individual identified himself as § 87(2)(b) opened the door and informed the officers that he

owned the apartment. PO Kalaj could see inside the apartment. He saw § 87(2)(b) and § 87(2)(b) a few feet away from the door. He did not see the dog, but he assumed that it was placed in a bedroom. There were a number of people in the apartment. He could not recall how many people, but it was a mix of males and females. SGT Bakraqi told § 87(2)(b) and § 87(2)(b) to exit the apartment. § 87(2)(b) stood in a fighting stance with his fists up and said, “Wait till I see you, I am going to fuck you up.” This was when he was in violation of menacing an officer. SGT Bakraqi told the individuals that they were “not going to talk to [his] officers like that. You need to come with us.” SGT Bakraqi entered the apartment first and PO Crespo and PO Kalaj followed. A number of individuals stood in front of the officers and § 87(2)(b) and § 87(2)(b). These individuals were speaking to the officers, but he did not recall what they were saying. SGT Bakraqi drew his Taser and pointed it at either § 87(2)(b) or § 87(2)(b). § 87(2)(b) told § 87(2)(b) and § 87(2)(b) that they needed to leave the apartment and go with the officers. PO Kalaj, SGT Bakraqi, and PO Crespo walked into the hallway and § 87(2)(b) and § 87(2)(b) followed. They were placed under arrest. He did not recall hearing any officer say the word, “bitch” nor did he recall hearing any officer say “fuck” or, “Get the fuck out of the apartment.”

Subject Officer: SGT KRESHNICK BAKRAQI

- See enclosures for pedigree information (encl. E5).

Memo Book

SGT Bakraqi had detailed entries in his memo book, including that § 87(2)(b) threatened an officer with a dog, as though he was going to unleash it (encl. E1-4).

CCRB Statement

SGT Bakraqi was interviewed at the CCRB on July 10, 2014 (encl. E5-7). § 87(2)(g)

SGT Bakraqi asked PO Kalaj what occurred. PO Kalaj informed SGT Bakraqi that one of the individuals, later identified as § 87(2)(b) had used the dog to threaten him and the dog was barking and growling at him. PO Kalaj further explained that when he attempted to speak with § 87(2)(b) § 87(2)(b) had put his fists up and stated, “If you touch me, I am going to fuck you up.” § 87(2)(b) and § 87(2)(b) fled into apartment § 87(2)(b).

SGT Bakraqi knocked on apartment § 87(2)(b) door. An unidentified female and male opened the door. SGT Bakraqi could see inside living room and hallway of the apartment. There were numerous individuals in the apartment. SGT Bakraqi asked who had just entered the house. The female, identified by the investigation as § 87(2)(b) informed the officer that it was her son and her son’s friend. SGT Bakraqi informed § 87(2)(b) that an incident had occurred and that he needed to speak with § 87(2)(b) and § 87(2)(b). SGT Bakraqi was intending to arrest both § 87(2)(b) and § 87(2)(b) for their threatening behavior toward PO Kalaj. SGT Bakraqi did not tell § 87(2)(b) this as he did not want to escalate the situation any further. SGT Bakraqi told § 87(2)(b) that he was conducting an investigation and he needed to speak with § 87(2)(b) and § 87(2)(b). SGT Bakraqi did not see the dog again and he did not know where the dog was inside the apartment.

Both § 87(2)(b) and § 87(2)(b) walked to the door frame, behind § 87(2)(b) and the other male. They were both yelling at the officers. § 87(2)(b) pounded one of his fists into the open palm of his other hand and said to PO Crespo, “Wait till I see you, I’m going to fuck you up.” SGT Bakraqi stepped into the apartment with one of the officers, but he could not recall which one, in order to arrest § 87(2)(b) and § 87(2)(b) as they refused to exit the apartment. SGT Bakraqi told § 87(2)(b) to exit the apartment as he was under arrest. § 87(2)(b) complied

and walked in to the hallway in the building. § 87(2)(b) upon hearing this, ran into a room further in the apartment. SGT Bakraqi pursued § 87(2)(b) to this room. A female who was in the apartment attempted to block SGT Bakraqi's path to the room with her body. SGT Bakraqi could not recall if this female was § 87(2)(b) or another individual. SGT Bakraqi informed the female that she was not allowed to block his pathway as § 87(2)(b) was under arrest. § 87(2)(b) stood at the entry way of the bedroom door and stood with both his fists up in a "combat stance." SGT Bakraqi told § 87(2)(b) that § 87(2)(b) did not want a fight and that SGT Bakraqi had to do his job. § 87(2)(b)'s stance did not change and § 87(2)(b) did not move to leave the apartment. SGT Bakraqi removed his Taser from his belt and pointed it at § 87(2)(b) stating that he did not want to fight § 87(2)(b). SGT Bakraqi did not point his Taser at anyone else and he did not point the Taser at a female's head. SGT Bakraqi commanded § 87(2)(b) out of the apartment. § 87(2)(b) walked out of the apartment of his own accord. SGT Bakraqi holstered his Taser once he observed § 87(2)(b) leaving the apartment. § 87(2)(b) exited the apartment.

SGT Bakraqi did not recall hearing an officer say or saying "bitch," "fuck," or "get the fuck out of the apartment."

Subject Officer: PO EDWIN CRESPO

- See enclosure for pedigree information (encl. F4).

Memo Book

PO Crespo had detailed entries in his memo book (encl. F1-3)

CCRB Statement

PO Crespo was interviewed at the CCRB on September 16, 2014 (encl. F4-5). § 87(2)(g)

§ 87(2)(g) Upon turning the corner to where PO Kalaj, § 87(2)(b) and § 87(2)(b) were standing, PO Crespo observed PO Kalaj with his firearm drawn and pointed at a pit bull that was held by § 87(2)(b). § 87(2)(b) held the dog in front of him toward PO Kalaj and the dog was barking. § 87(2)(b) was holding the dog by the collar and pushing the dog toward PO Crespo in a menacing fashion. § 87(2)(b) did not appear to be holding the dog back, but pushing the dog forward. The dog was a few feet away from PO Kalaj. § 87(2)(b) and § 87(2)(b) ran inside the apartment with the pit bull.

PO Crespo, assuming that § 87(2)(b) and § 87(2)(b) were going to shut the apartment door, removed his asp without extending it. He placed his foot at the base of the door and stuck his unextended asp between the door and the door frame to keep the door from closing. PO Crespo looked behind him to ensure that SGT Bakraqi and PO Kalaj were there. PO Kalaj, SGT Bakraqi, and PO Crespo entered the apartment, intending to apprehend § 87(2)(b) and § 87(2)(b). PO Crespo, upon entering, noticed both males and the dog go into a bedroom on the left and shut the door. There were approximately five individuals inside the apartment other than § 87(2)(b) and § 87(2)(b). Some of the individuals in the apartment began screaming profanities at the officers and pushing the officers. § 87(2)(b) and § 87(2)(b) said through the door that the officers attempted to shoot their dog. A male attempted to calm everyone down. PO Crespo, PO Kalaj and SGT Bakraqi agreed to exit the house after the male stated that he would get § 87(2)(b) and § 87(2)(b) to step into the building's hallway. The officers stepped out of the apartment, but PO Crespo left his asp in the door to prevent it from closing. The officers were in the apartment for approximately one minute.

PO Crespo did not see SGT Bakraqi remove his Taser and point it at anyone. PO Crespo did not hear any officer use the word, “Bitch” or “fuck” during the incident. He did not recall any officer saying “Get the fuck out of the apartment.”

The male was able to get § 87(2)(b) and § 87(2)(b) out of the room. § 87(2)(b) put his hands in a fighting stance, while still in the apartment and said something similar to, “I gonna fuck you up.” § 87(2)(b) and § 87(2)(b) walked out of the apartment and were placed under arrest.

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
■ § 87(2)(b)
§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of June 6, 2014 with regard to the incident (encl. H21).

Civilians Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and it is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (encl. B4-6).

Subject Officer(s) CCRB History

- PO Alban Kalaj has been a member of the service for three years and there is one substantiated CCRB allegation against him:
 - 201204785 involved an allegation of a retaliatory summons against PO Kalaj. The board substantiated this allegation and recommended charges. The case is currently with the Administrative Prosecuting Unit at the CCRB (encl. B2).
- SGT Kreshnik Bakraqi has been a member of the service for nine years and there are no substantiated CCRB allegations against him. (encl. B3).
- PO Edwin Crespo has been a member of the service for eight years and there are no substantiated CCRB allegations against him. (encl. B1).

Conclusion

Allegation not Pled

§ 87(2)(g)

Identification of Subject Officers

PO Kalaj acknowledged drawing his firearm § 87(2)(g).
PO Crespo and SGT Bakraqi acknowledged entering § 87(2)(b)'s apartment and SGT Bakraqi acknowledged drawing his Taser. § 87(2)(g).

Investigative Findings and Recommendations

Allegation A—Force: PO Alban Kalaj pointed his gun at § 87(2)(b) and § 87(2)(b) § 87(2)(b).
§ 87(2)(g) it is undisputed that PO Kalaj had his firearm drawn and pointed during the incident, § 87(2)(g).
PO Kalaj and PO Crespo both denied that PO Kalaj pointed his firearm anywhere but at § 87(2)(b)'s dog and SGT Bakraqi was not present during this portion of the incident.

§ 87(2)(g).
It is thus recommended that **Allegation A** be **unsubstantiated**.

Allegation B—Abuse of Authority: PO Alban Kalaj threatened to damage § 87(2)(b)'s property.
It is undisputed that PO Kalaj had his firearm drawn and pointed during the incident. PO Kalaj acknowledged pointing his firearm at § 87(2)(b)'s dog, and telling § 87(2)(b) that he would shoot the dog should he let the dog go. § 87(2)(b) and § 87(2)(b) acknowledged that § 87(2)(b)'s dog was acting aggressively, but their intent was to pull the dog away from the officer, not menace the officer. PO Crespo and the arrest documentation were consistent that § 87(2)(b) urged the dog forward and made threatening motions with the dog.

§ 87(2)(g).
It is therefore recommended that **Allegation B** be **unsubstantiated**.

Allegation C—Abuse of Authority: SGT Kreshnik Bakraqi entered § 87(2)(b) in the Bronx.

Allegation D—Abuse of Authority: PO Edwin Crespo entered § 87(2)(b) in the Bronx.

It is undisputed that PO Crespo and SGT Bakraqi entered § 87(2)(b) in the Bronx. It is further undisputed that PO Kalaj attempted to stop the § 87(2)(b) and § 87(2)(b) before they entered the apartment and that § 87(2)(b)'s pit bull acted aggressively toward PO Kalaj. § 87(2)(b) and PO Crespo all stated that PO Crespo stuck his foot in the door frame and an object at the top of the door to prevent § 87(2)(b) and § 87(2)(b) from shutting the door on the officers.
§ 87(2)(b) and § 87(2)(b) both stated that they walked to § 87(2)(b)'s apartment to avoid interacting with the police.

SGT Bakraqi and PO Crespo entered the apartment to arrest § 87(2)(b) and § 87(2)(b) for § 87(2)(a) 160.50.

The police are prohibited from entering a private residence to make a warrantless arrest. People v Cruz 981 N.Y.S. 2d 637 2013 (encl. A1-4) The warrantless arrest of a person inside their home may be reasonable if exigent circumstances, such as a “hot pursuit” exist. The “hot pursuit” exception to the Fourth Amendment’s prohibition against warrantless entries applies only in situations where the individual is suspected of a felony offense.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be **substantiated**.

Allegation E—Discourtesy: PO Edwin Crespo spoke discourteously to § 87(2)(b)

Allegation F—Discourtesy: SGT Kreshnik Bakraqi spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that, upon entering the apartment, PO Crespo called him a “bitch” for running. § 87(2)(b) stated that upon entering the apartment, SGT Bakraqi stated, “Get the fuck out of the apartment.” § 87(2)(b) stated that SGT Bakraqi called § 87(2)(b) a “Bitch” and said to her, “I don’t give a fuck. I want them out of the apartment right now.”

PO Kalaj, PO Crespo, and SGT Bakraqi denied ever having said these phrases or hearing them said by any officer.

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be **unsubstantiated**.

Allegation G—Abuse of Authority: SGT Kreshnik Bakraqi threatened § 87(2)(b)

§ 87(2)(b) **with the use of force.**

SGT Bakraqi, § 87(2)(b) and PO Kalaj all agree that SGT Bakraqi drew his Taser after § 87(2)(b) and § 87(2)(b) entered the apartment. § 87(2)(b) PO Crespo, and SGT Bakraqi all described individuals in the apartment attempting to block SGT Bakraqi from arresting § 87(2)(b) § 87(2)(g)

§ 87(2)(b) SGT Bakraqi stated that he pointed the Taser solely at § 87(2)(b) to obtain his compliance with exiting the apartment to be arrested. He stated that he only pointed it at § 87(2)(b) after issuing him commands to exit the apartment and § 87(2)(b) refusing to comply, putting his fists up in a fighting stance. SGT Bakraqi gained § 87(2)(b) § 87(2)(b)s compliance by pointing the Taser at § 87(2)(b)

Police Department v. Cruz Oath Index Nos. 303 & 310/98 (April 15, 1998) (encl. A26-47) An officer is permitted to issue threats to an individual in order to diffuse a potential physical confrontation.

§ 87(2)(g)

it is recommended that **Allegation G** be **exonerated**.

Allegation H—Abuse of Authority: SGT Kreshnik Bakraqi threatened § 87(2)(b)

and individuals with the use of force.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be unsubstantiated.

Team: One

Investigator:	<u>Lily Carayannis</u>	<u>December 18, 2014</u>
	Signature	Date

Supervisor:	<u></u>	<u></u>
	Title/Signature	Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Date